

Sampada Paradkar vs Prashant Kashiram Paradkar on 19 October, 2022

Author: Sharmila U. Deshmukh

Bench: Nitin Jamdar, Sharmila U. Deshmukh

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IN THE HIGH COURT OF JUDICATURE AT BOMBAY
CIVIL APPELLATE JURISDICTION

FAMILY COURT APPEAL NO.65 OF 2021
WITH
INTERIM APPLICATION NO.1267 OF 2021
WITH
INTERIM APPLICATION NO.2295 OF 2021
WITH
INTERIM APPLICATION NO.2512 OF 2022
IN
FAMILY COURT APPEAL NO.65 OF 2021

Sampada Paradkar .. Appellant
Versus
Prashant K. Paradkar .. Respondent

WITH
FAMILY COURT APPEAL NO.66 OF 2021
WITH
INTERIM APPLICATION NO.1268 OF 2021
WITH
INTERIM APPLICATION NO.1269 OF 2021
IN
FAMILY COURT APPEAL NO.66 OF 2021

Prashant K. Paradkar .. Appellant
Versus
Sampada Paradkar .. Respondent

.....
Mrs.Seema Sarnaik i/b. Ms.Neelam Morey, Advocate for Sampada
Paradkar.
Mr.Ranvir Shekhawat i/b. M/s.Raj Legal, Advocate for Prashant K.
Paradkar
.....

Rajeshri Aher

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CORAM : NITIN JAMDAR AND
SHARMILA U. DESHMUKH, JJ.

DATED : 19 October 2022.

P.C. :

Heard the learned counsel for the parties.

2 The Appeal challenges the order dated 17 February 2021 passed by the Family Court, Bandra, Mumbai in a Petition filed by the Respondent-husband. By this order, the Petition was allowed and decree of divorce was granted under Section 13(1)(ia)(ib) of the Hindu Marriage Act. It was declared that the Respondent-husband, father of the child is entitled to exclusive custody of the child. However, instead of directing the custody of the child to be handed over forthwith, it was directed that it would be shifted in a phase-wise manner. The Appellant was directed to provide overnight physical summer vacation access to the child for 31 days. A statement was made by the Respondent, which is recorded in the order that he will pay the school fees of the child.

3 The learned counsel for the Appellant states that Respondent be directed to pay the school fees, while the learned counsel for the Respondent states that the Appellant is not complying with the directions to provide overnight physical access. That overnight physical access is not being provided seems to be an accepted position Rajeshri Aher 3/3 26 fca 65 of 2021 common.doc as what is informed to us that Respondent is permitted to meet the child in the building compound. The learned counsel for the Respondent therefore is right in contending that his voluntary statement cannot be forced beyond what it means, if the Appellant has not complied with the order. The learned counsel for the Appellant sought to put forth various reasons why physical summer vacation access is not desirable.

4 In this circumstances, we are of the opinion that no orders can be passed in the Applications filed by both the parties. Therefore, we list the Appeal for hearing on 9 November 2022.

5 Parties will circulate the list of dates and event of summery of their propositions in advance. Parties will file their compilation of documents in advance.

SHARMILA U. DESHMUKH, J.

NITIN JAMDAR, J.

Rajeshri Aher